

Green Card Application Checklist

For an H-1B Holder Marrying a Lawful Permanent Resident (Green Card Holder) — Family Second Preference (F2A) Category

This guide is a personal-reference checklist, not legal advice. Immigration rules, fees, and processing times change frequently. Always confirm current requirements at **uscis.gov** and the monthly **Visa Bulletin** at **travel.state.gov** before filing, and consider consulting a licensed immigration attorney.

Why this category is different

Marrying a **U.S. citizen** makes you an "immediate relative" with no annual visa cap. Marrying a **green card holder (LPR)** instead places you in the **F2A** preference category, which has an annual numerical limit. You must wait for your "priority date" (the date your I-130 is filed) to become current on the Visa Bulletin before you can complete the final green card steps. If your LPR spouse later naturalizes as a U.S. citizen, your case automatically upgrades to immediate relative status and the wait disappears.

The Process at a Glance

Step	Form	Filed By	Purpose
1	I-130 + I-130A	LPR spouse (you co-sign I-130A)	Establishes the qualifying marriage relationship
2	Wait for priority date	N/A — Visa Bulletin	F2A visa number must become available
3a	I-485 (if in U.S.)	You, the applicant	Adjustment of status to permanent resident
3b	DS-260 (if abroad)	You, the applicant	Consular processing for immigrant visa
4	I-765 (optional)	You, the applicant	Work permit (EAD) while I-485 is pending
5	I-131 (optional)	You, the applicant	Advance Parole — travel permission while pending
6	I-864	LPR spouse (sponsor)	Affidavit of Support — financial sponsorship
7	I-693	You, via a civil surgeon	Medical examination

1. Form I-130 — Petition for Alien Relative

Filed by your LPR spouse (the **petitioner**) to prove your marriage is legally valid and bona fide. Filing or approval of the I-130 alone does not give you any status — it only establishes your place in line.

Fee (2026)

- \$625 if filed online, \$675 if filed on paper (fee is non-refundable regardless of outcome).
- No separate biometrics fee applies to Form I-130.

Documents to submit with I-130

- Form I-130, signed and dated by the petitioner (LPR spouse).

- **Form I-130A** — Supplemental Information for Spouse Beneficiary — completed and signed by you (required for spouse cases).
- Copy of petitioner's Permanent Resident Card (green card), front and back.
- Certified copy of your marriage certificate.
- Proof any prior marriages (either spouse) were legally terminated: divorce decree, annulment order, or death certificate.
- Two recent, identical passport-style photos of both petitioner and beneficiary (if required by current instructions).
- Evidence the marriage is bona fide (see Section 6 below — this is the most heavily scrutinized part of an F2A filing).

2. Form I-130A — Supplemental Information for Spouse Beneficiary

You (the beneficiary spouse) complete and sign this yourself; it is filed together with the I-130. It asks for your biographic details, address history, and employment history.

What it requires

- Your complete address history — typically the last 5 years, with no gaps.
- Your complete employment history for the same period.
- Details of your parents and any prior marriages.
- Your current immigration status details (H-1B receipt number, I-94 record, etc.).

Consistency matters more than completeness. Every address and date you list here must exactly match what appears on your I-485, your I-94 record, your visa applications, and your tax filings. See Section 7 on address mismatches.

3. Form I-485 — Application to Register Permanent Residence or Adjust Status

Filed by you once a visa number is available (i.e., your F2A priority date is current). If you are in the U.S. in valid status and your priority date is already current when the I-130 is filed, you may be able to file the I-130 and I-485 **concurrently** — this is the fastest path.

Fee (2026)

- Check the current USCIS fee schedule at filing time — fees for I-485 (and any bundled biometrics) have changed under recent fee rules and vary by age and whether filed with related forms.

Core documents to submit with I-485

- Copy of your passport biographic page and any valid U.S. visas.
- Copy of your I-94 arrival/departure record (verify it online at the CBP I-94 website before filing).
- Birth certificate (certified copy, with certified translation if not in English).
- Marriage certificate (same copy used for I-130).
- Two passport-style photos.
- Form I-693, Report of Medical Examination and Vaccination Record, sealed by a USCIS-approved civil surgeon.
- Form I-864, Affidavit of Support, from your LPR spouse (plus their tax transcripts/W-2s for the most recent year, pay stubs, employment letter).
- Evidence of your lawful entry into the U.S. (visa stamp, I-94, or CBP records) — required to adjust status.
- Copy of the I-130 receipt notice (or file concurrently).
- Court dispositions for any arrests, citations, or criminal history, even if dismissed or expunged.

Related optional forms filed alongside I-485

Form	Purpose	Notes
I-765	Employment Authorization Document (EAD)	Gives you a work permit independent of your H-1B while I-485 is pending
I-131	Advance Parole	Permission to re-enter the U.S. after travel without abandoning your pending I-485

Note: as an H-1B holder you generally retain some ability to travel and work on your existing visa status, but most attorneys still recommend obtaining Advance Parole once I-485 is pending, since traveling without it can risk being treated as abandoning the application.

4. Form I-864 — Affidavit of Support

Completed by your LPR spouse (the sponsor) to show they can financially support you at or above 125% of the federal poverty guidelines. This is filed with your I-485.

Documents needed

- Sponsor's most recent federal tax return (transcript or full copy with all W-2s/1099s) — must be current-year filed if the deadline has passed.
- Sponsor's employment verification letter and recent pay stubs.
- If the sponsor's income alone doesn't meet the threshold: assets documentation, or a joint sponsor with their own I-864 and tax documents.
- Proof of the sponsor's domicile in the United States (since LPRs must show they maintain U.S. domicile to sponsor).

5. Form I-693 — Medical Examination

- Must be completed by a USCIS-designated civil surgeon (not any doctor).
- Includes vaccination records — bring your existing vaccination history if available.
- Keep the sealed envelope sealed; do not open it yourself.
- Timing matters: exams signed too far in advance of your interview may be treated as stale (generally must be within 2 years, but confirm current guidance).

6. Bona Fide Marriage Evidence (F2A Cases Face Heavy Scrutiny)

USCIS evaluates F2A marriage petitions specifically for fraud indicators. Build a thorough, organized evidence file covering the full span of your relationship and marriage:

- Joint bank account statements and/or joint credit card statements.
- Joint lease or mortgage documents, or utility bills in both names at the same address.
- Joint health, auto, or renter's/home insurance policies.
- Photos together spanning different points in time and different occasions (with dates/context noted).
- Correspondence, call logs, or messaging records showing an ongoing relationship.
- Affidavits from friends and family who know you as a couple.
- Birth certificates of any children you have together.
- Travel records showing trips taken together.

Avoid submitting an unorganized pile of documents — label exhibits and add a short cover letter/index. Officers evaluate consistency and credibility, not just quantity.

7. Address & Name Mismatches — A Leading Cause of RFEs

Inconsistent addresses and name spellings across your documents are one of the most common reasons USCIS issues a Request for Evidence (RFE) or delays a case. This applies to both I-130 and I-485 filings.

Common triggers

- The address you list on Form I-485 or I-130A doesn't match what USCIS already has on file from your prior visa petitions (e.g., your H-1B I-129 filings), your I-94 record, or a prior Change of Address (Form AR-11).
- Timeline gaps — even a one-month period where no address or employer is listed can flag the file for manual review.
- Your name is spelled differently across your passport, birth certificate, marriage certificate, and forms — including middle names, transliteration differences, or a name changed after marriage.
- You moved after filing but before your biometrics appointment, interview, or final decision, and didn't update USCIS.

- The address on your I-864 sponsor documents (pay stubs, tax transcripts) doesn't match the sponsor's stated address on the form.

How to prevent and resolve these issues

- **Before filing:** pull your official I-94 record from the CBP I-94 website and confirm it matches what you plan to list.
- **Before filing:** list every address for the required look-back period (commonly 5 years) with no gaps — use "N/A" rather than leaving a field blank if something doesn't apply.
- **Keep every form internally consistent** — if you file I-485, I-765, and I-131 together, the same name, addresses, dates, and A-Number must appear identically on all of them.
- **If you've moved:** file Form AR-11 (Change of Address) with USCIS within 10 days of moving, in addition to updating the address on any pending application (USCIS allows updating a pending case's address separately from AR-11).
- **If your name changed or has variant spellings:** include a brief signed cover letter explaining the discrepancy, plus supporting legal documents (marriage certificate showing the name change, court order, or certified translation notes for transliteration differences). Do not rely on a verbal explanation at interview — bring the certified documents.
- **If you receive an RFE about an address discrepancy:** respond with a short written explanation plus corroborating documents (lease, utility bill, employer letter, AR-11 confirmation) — address every point raised, since USCIS rarely issues a second RFE on the same issue.

Tip: keep a single master timeline document (a simple spreadsheet of address + employer + dates) before you start filling out any form, and copy from that master list into every form so nothing drifts between filings.

8. Master Document Checklist

Category	Item	Done
I-130	Signed petition form	■
I-130	Form I-130A completed and signed by beneficiary	■
I-130	Copy of petitioner's green card (front & back)	■
I-130	Certified marriage certificate	■
I-130	Termination proof of any prior marriages (both spouses)	■
I-130	Passport-style photos (if currently required)	■
I-130	Bona fide marriage evidence packet (see Section 6)	■
I-485	Passport biographic page + visa copies	■
I-485	I-94 record (verified against CBP website)	■
I-485	Certified birth certificate + translation if needed	■
I-485	Two passport-style photos	■
I-485	Sealed Form I-693 medical exam	■
I-485	Form I-864 Affidavit of Support + sponsor's tax/income evidence	■
I-485	Proof of lawful entry into the U.S.	■
I-485	I-130 receipt notice (or concurrent filing)	■
I-485	Court dispositions for any arrests/citations, if applicable	■
Optional	Form I-765 (EAD) + 2 photos	■
Optional	Form I-131 (Advance Parole) + 2 photos	■
Consistency	Master address/employment timeline cross-checked across all forms	■
Consistency	AR-11 filed for any address change during processing	■
Consistency	Written explanation + documents for any name or address discrepancy	■

Key Reminders

- Maintain valid H-1B status throughout — don't let it lapse while waiting on your priority date.
- F2A dates can move backward (retrogress) as well as forward — if you're eligible to file, don't delay.
- If your spouse naturalizes, notify USCIS/NVC immediately with the naturalization certificate — your case upgrades to Immediate Relative status with no visa cap.
- Non-refundable government filing fees mean it pays to get the paperwork right the first time — a second RFE response is rarely available before a denial.

Disclaimer: This document is a general informational checklist compiled from publicly available guidance as of July 2026. It is not legal advice and does not guarantee outcomes. Immigration law, fees, forms, and processing times change often. Verify every requirement at uscis.gov and travel.state.gov, and consult a licensed immigration attorney for advice specific to your situation.